

same. In its reply, Defendants contend that Counsel Jones spent a total of 29.8 hours. The Court finds that Defendants spent 29.8 hours and finds that the reasonable hourly rate for Counsel Jones is \$400.00 per hour (based on consideration of the prevailing rate in this community for similar work by counsel with similar experience). Total cost of proof legal fees are found to be \$11,920.00.

Total Fees Awarded

The 29.8 hours of legal work incurred in proving the denied requests for admission under Code of Civil Procedure section 2033.420(a), was *also* claimed as legal work in connection with the recovery of prevailing party fees under Civil Code section 1717. No good cause has been suggested as to why Defendants should receive duplicative compensation for the same legal work. Accordingly, the Court awards total attorney's fees of \$74,480.00.

3. CU0001096 Gregory Heil, et al. vs. Telestream, LLC

Plaintiffs' unopposed motion to file a settlement agreement under seal, enter judgment, and conditionally dismiss the lawsuit without prejudice is denied without prejudice.

Legal Standard

California Rules of Court, rule 2.551(b)(1) states, "A party requesting that a record be filed under seal must file a motion or an application for an order sealing the record. The motion or application must be accompanied by a memorandum and a declaration containing facts sufficient to justify the sealing." "Unless confidentiality is required by law, court records are presumed to be open." *California Rules of Court*, rule 2.550(c). Express factual findings are required in connection with sealing. *California Rules of Court*, rule 2.550(d). Specifically: "The court may order that a record be filed under seal only if it expressly finds facts that establish:

(1) There exists an overriding interest that overcomes the right of public access to the record; (2) The overriding interest supports sealing the record; (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No less restrictive means exist to achieve the overriding interest." *Ibid*. Moreover, the court must specify the content and scope of the order. *California Rules of Court*, rule 2.550(e). Specifically: "(1) An order sealing the record must: (A) Specifically state the facts that support the findings; and (B) Direct the sealing of only those documents and pages, or, if reasonably practicable, portions of those documents and pages, that contain the material that needs to be placed under seal. All other portions of each document or page must be included in the public file." *Ibid*.

Discussion

At bar, Plaintiffs' counsel has filed a supporting declaration to establish the factors set out under *California Rules of Court*, Rule 2.550(d). Plaintiffs request the entire settlement agreements be filed under seal, or in the alternative, that Sections 1, 2, 5-9 of the agreements be filed under seal. Plaintiffs have not provided the Court with an unredacted copy of the agreements or any of the referenced sections. Moreover, Plaintiffs have not offered any meaningful discussion of the required factors under Rule 2.550(d). On this record, there is no good cause set forth for complete or partial sealing.

The parties are reminded of the requirements of Code of Civil Procedure section 664.6 in the event they wish the Court to enter judgment with retention of jurisdiction and the parties wish retain possession of the settlement agreements without formal filing at this time. Code of Civil Procedure section 664.6(a), provides:

If parties to pending litigation stipulate, in a writing signed by the parties outside of the presence of the court or orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.

Plaintiffs' motion is denied without prejudice.

4. CU0001664 Carla Markeeta Jefferson, et al. vs. Heating-Cooling Service Co., et al.

Defendants' motion to continue trial and reopen discovery is granted.

Legal Standard

"Continuances are granted only on an affirmative showing of good cause requiring a continuance." *In re Marriage of Falcone & Fyke* (2008) 164 Cal.App.4th 814, 823. A trial court has broad discretion in considering a request for a trial continuance. *Pham v. Nguyen* (1997) 54 Cal.App.4th 11, 13-18. California Rules of Court, rule 3.1332 sets forth factors for the Court to consider in ruling on a motion to continue trial.

"To ensure the prompt disposition of civil cases, the dates assigned for a trial are firm. All parties and their counsel must regard the date set for trial as certain." Cal. Rules of Court, rule 3.1332(a).

"A party seeking a continuance of the date set for trial, whether contested or uncontested or stipulated to by the parties, must make the request for a continuance by a noticed motion or an ex parte application..., with supporting declarations. The party must make the motion or application as soon as reasonably practical once the necessity for the continuance is discovered." Cal. Rules of Court, rule 3.1332(b).

"Although continuances of trials are disfavored, each request for a continuance must be considered on its own merits. The court may grant a continuance only on an affirmative showing of good cause requiring the continuance." Cal. Rules of Court, rule 3.1332(c).

Circumstances that may indicate good cause include:

- (1) The unavailability of an essential lay or expert witness because of death, illness, or other excusable circumstances;
- (2) The unavailability of a party because of death, illness, or other excusable circumstances;